

CHAPTER XI.

Examination of Parties.

The rules under which Plaintiffs and Defendants may be examined are as follow :—

Any party to a suit may be examined as a witness by the party adverse in point of interest, or by any one of several parties adverse in point of interest, without any special order for that purpose : and may be compelled to attend and testify in the same manner upon the same terms, and subject to the same rules of examination as any other witness, except as hereinafter provided. And any person, for whose immediate benefit a suit is prosecuted or defended, though not a party to the record, may be regarded as a party for the purpose of this order. Provided always, that, where it shall appear upon the hearing that any party examined under this order is united in interest with the examining party, the evidence so taken shall not be used on behalf of either the examining party, or of the examining party, but may be struck out on the hearing at the instance of any party affected thereby.

Any party defendant may be examined, as heretofore, upon order for that purpose, on behalf of either the plaintiff or a co-defendant, upon points as to which the party so to be examined is not interested. And any party plaintiff may, under the same circumstances, be examined by a co-plaintiff or by a defendant. Provided, that, where any person having an interest shall have been examined under this order, such evidence shall not be used on behalf of either the examining party or of the party so examined, but may be struck out upon the hearing, at the instance of any party affected thereby ; but such examination shall not preclude the Court from making a decree either for or against the party examined.

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Any party to the record may be examined by a party in adverse interest.

LI.

Co-plaintiff and Co-defendant may be examined on points on which he is disinterested.